

WAIVER OF LIABILITY, INDEMNITY AGREEMENT AND ASSUMPTION OF RISK

PLEASE READ CAREFULLY · INITIAL EACH SECTION · SIGN BELOW

WAIVER OF LIABILITY

I, the undersigned ("Client"), for myself, my heirs, personal representatives and assigns, in consideration of authorization to use, today and on all future dates, the property, facilities, and services of Above & Beyond Fitness LLC (hereinafter referred to as Above & Beyond Fitness), in addition to the payment of any fee or charge, **do hereby release, waive, covenant not to sue and discharge** Above & Beyond Fitness, its owners, employees, trainers, contractors, representatives, volunteers, agents and all others **from any and all claims, demands and causes of action arising from the ordinary negligence or omission** of Above & Beyond Fitness or any of the aforementioned parties. This agreement applies to 1) personal injury (including, but not limited to, death, heart attacks, muscle strains, pulls or tears, broken bones, shin splints, heat prostration, knee/lower back/foot injuries, or any other illness, soreness, or injury), however caused, occurring during or after my participation in Above & Beyond Fitness exercise programs or activities including, but not limited to, aerobic dance, weight training, stationary bicycling, organized activities, classes, observation, and individual use of, facilities, premises, aerobic-conditioning machinery or equipment; and to 2) any and all claims resulting from damages to, loss of, or theft of property.

PLEASE INITIAL

INDEMNIFICATION AND HOLD HARMLESS

I, the undersigned ("Client"), also agree to **HOLD HARMLESS AND INDEMNIFY** Above & Beyond Fitness from ordinary negligence and to reimburse them for any expenses incurred as a result of my participation in exercise, training, and fitness activities at or facilitated by Above & Beyond Fitness. I further agree to pay all costs and attorneys' fees incurred by Above & Beyond Fitness in investigating and defending a claim or suit if my claim is withdrawn, or to the extent a court or arbitration determines that Above & Beyond Fitness is not responsible for the injury or loss.

PLEASE INITIAL

ASSUMPTION OF RISKS

I, the undersigned ("Client"), understand and am aware that physical activity, including the use of facilities, equipment and machinery, carries with it inherently dangerous risks that cannot be eliminated regardless of the care taken to avoid injuries. **These inherently dangerous physical activities involve a risk of injury and even death** and I am voluntarily participating in these inherently dangerous activities offered through Above & Beyond Fitness with the knowledge of the inherent dangers involved. I fully understand the nature of physical activity at or facilitated by Above & Beyond Fitness, the physical demand of activities made possible by Above & Beyond Fitness, and I may injure myself as a result of my participation in Above & Beyond Fitness's exercise and fitness training program. **I hereby affirm that my participation at Above & Beyond Fitness is voluntary and expressly assume and accept any and all risks of injury or death.**

PLEASE INITIAL

SEVERABILITY AND VENUE

The undersigned further expressly agrees that the foregoing waiver of liability, indemnity, and assumption of risks agreement is intended to be as broad and inclusive as is permitted by the law of the State of Arizona and that if any portion thereof is held invalid, it is agreed that the balance shall, notwithstanding, continue in full legal force and effect. Likewise, I agree that if legal action is brought, it must be brought in Maricopa County, Arizona.

PLEASE INITIAL

ACKNOWLEDGEMENT OF UNDERSTANDING

I have read this waiver of liability, indemnification and assumption of risks agreement and fully understand its terms. I understand that I am giving up substantial rights, including my right to sue. I acknowledge that I am signing the agreement freely and voluntarily, and intend my signature to be a complete and unconditional release of all liability and assumption of the inherent risks of participating in or observing recreational, fitness, and training activities at Above & Beyond Fitness to the greatest extent allowed by law in the State of Arizona.

CLIENT NAME (PLEASE PRINT)

CLIENT SIGNATURE

DATE

If under 18, a parent or legal guardian must sign below and initial above as authorization of this waiver.

PARENT/GUARDIAN NAME (PLEASE PRINT)

PARENT/GUARDIAN SIGNATURE

DATE

ABOVE & BEYOND FITNESS LLC

LIABILITY WAIVER